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Submitter Information

Name: Logan Thresher

[REDACTED]

General Comment

See attached file(s)

Attachments

AI Action Plan comment

I am an American citizen studying computer science, and who has an interest in pursuing creative fields like illustration.

Generative AI made by Big Tech companies such as OpenAI (backed by Microsoft) and Google threaten to destroy the livelihoods of millions of Americans with their recent demand to weaken copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". **However, the principle of fair use is clearly violated as the outputs of generative AI directly compete with the creators it stole from in the marketplace, as stated before.**

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new and innovative piece of computer programming, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things? This will ultimately greatly harm the economy in the long run.

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, and transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. This should include everything posted on the internet, such as social media posts, as even these have been scraped by Big Tech companies and are also protected by copyright law. It is important the consent given is done through opt-in rather than opt-out. It is near impossible to find out every single unauthorized use of a work, and so opt-in is the only viable option.
- Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech. Licensing should be given out by the actual creators, not whatever website it is hosted on since the original creators are the actual copyright holders.
- Third, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what all material is in their training datasets, and label what content is AI generated. Without proper labeling, it is very easy to use generative AI for fraudulent purposes, such as fooling a client into thinking an image was made by a human when it actually was not. In addition, keeping the dataset a secret obscures what exact work has been used. Many generative AI companies keep their datasets secret so it is harder to rightfully sue them, since they have used many works without permission.
- Fourth, regardless of copyright it should be illegal to use anyone's likeness or voice with generative AI without consent. It is a horrific privacy violation to generate false scenarios and quotes of people that can easily be used to harm them.
- Fifth, the datasets used for generative AI should be completely free of personal identifiable information. Many current generative AI models use an avalanche of data scraped from the internet, which includes leaked PII. And so, they can further leak PII to anyone who uses them, including to foreign countries. This is why it is foolish to pursue generative AI for the sake of "national security", since it actually weakens national security by leaking information and stagnating the economy.
- Finally, under no circumstances should AI generated outputs be protected by copyright. The USCO has already made it clear that works made with no human effort are not eligible for this protection. Giving AI outputs copyright would only further de incentivize actual human creation and innovation.

I am not anti-technology or anti-AI, this is made evident by what I am studying in college. However, we should not sacrifice the hard work of millions of Americans and give it away to Big Tech for free by rewriting copyright law. For what reason should these Big Tech companies freely steal away the hard work of creatives? The data scraped from the internet is clearly desirable. **If these companies can pay for electricity and employees, they can also pay the creators of creative works by acquiring actual licenses the legal way.**

Thank you for the opportunity to comment on these important issues.